

El Paso County Delia Briones County Clerk

Instrument Number: 00000000006

L.Mendez

Recorded On: 5/18/2026 2:44:13 PM

Number of Pages: 1

NF Pages: 1

*****THIS PAGE IS PART OF THE INSTRUMENT*****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

File Information

Document Number	00000000006
Receipt Number	1987849
Fees	\$12.00



State of Texas
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon, and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones
County Clerk
El Paso County, TX

A handwritten signature in cursive script that reads "Delia Briones".

NOTICE OF CONFIDENTIALITY RIGHTS: IF YOU ARE A NATURAL PERSON, YOU MAY REMOVE OR STRIKE ANY OR ALL OF THE FOLLOWING INFORMATION FROM ANY INSTRUMENT THAT TRANSFERS AN INTEREST IN REAL PROPERTY BEFORE IT IS FILED FOR RECORD IN THE PUBLIC RECORDS: YOUR SOCIAL SECURITY NUMBER OR YOUR DRIVER'S LICENSE NUMBER.

**NOTICE OF SUBSTITUTE TRUSTEE'S SALE AND
APPOINTMENT OF SUBSTITUTE TRUSTEES**

THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE. THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY OR AUTHORIZED AGENT OF THE MORTGAGEE OR MORTGAGE SERVICER.

NOTICE OF SUBSTITUTE TRUSTEE'S SALE

DATE: May 14, 2026

NOTE: Note described as follows:

Date: June 15, 2001
Maker: Juan M. Montanez Jr. and Catalina Montanez
Payee: BANK OF AMERICA, N.A. successor to original lender
Original Principal Amount: \$128,600.00

DEED OF TRUST: Deed of Trust described as follows:

Date: June 15, 2001
Grantor: Juan M. Montanez Jr. and Catalina Montanez
Trustee: Harold W. Hahn and/or Bill Hagan
Beneficiary: BANK OF AMERICA, N.A. successor to original lender
Recorded: INSTRUMENT NO. 20010044131 WHICH WAS RECORDED IN
THE REAL PROPERTY RECORDS OF EL PASO COUNTY,
TEXAS.

LENDER: BANK OF AMERICA, N.A.

BORROWERS: JUAN M. MONTANEZ JR. AND CATALINA MONTANEZ

PROPERTY: The property described as follows:

THE PROPERTY LOCATED IN EL PASO COUNTY, TEXAS, INCLUDING
PERSONAL PROPERTY, IF ANY, AS DESCRIBED IN THE DEED OF TRUST
AND IN EXHIBIT A, ATTACHED HERETO AND INCORPORATED HEREIN

FOR ALL PURPOSES, together with all buildings, structures, fixtures and improvements thereon and any and all appurtenances and rights thereto, ***SAVE AND EXCEPT ANY AND ALL LOTS OR PORTIONS THEREOF THAT HAVE BEEN RELEASED OF RECORD BY THE HOLDER OF THE DEED OF TRUST.***

SUBSTITUTE TRUSTEE: Beverly Mitrison, Russel A. Malphurs, David Garvin, Bruce Miller, Israel Curtis, Matthew Hansen, Faith Flores, Wesley Fowler-Williams, Gerardo Cabrera, Aleena Litton, Vina Nguyen, Dalene VanDermyden, Ramiro Cuevas, Joshua Sanders, Cary Corenblum, Daniel Hart, Auction.com LLC

Substitute Trustee's Mailing Address:

c/o SettlePou
3333 Lee Parkway, Eighth Floor
Dallas, Texas 75219

DATE AND TIME OF SUBSTITUTE TRUSTEE'S SALE OF PROPERTY:

AUGUST 4, 2026, the first Tuesday of the month, to commence at 10:00 A.M., or within three (3) hours after that time.

PLACE OF SUBSTITUTE TRUSTEE'S SALE OF PROPERTY:

In EL PASO County, Texas, at THE COLISEUM – 4100 EAST PAISANO DRIVE, EL PASO, TEXAS 79905 OR AS DESIGNATED BY THE COUNTY COMMISSIONER'S OFFICE.

RECITALS

Lender, the owner and holder of the Note and the Deed of Trust lien under Texas Property Code Section 51.002, has requested that Substitute Trustee sell the Property according to the terms of the Deed of Trust and applicable law due to a default in the payment of the Note and/or in the performance of the obligations under the Deed of Trust that secures the Note.

Formal notice is now given of Lender's election to proceed against and sell the real property described in the Deed of Trust, consistent with the Lender's rights and remedies under the Deed of Trust and applicable law.

Therefore, notice is given that on the Date and Time of Substitute Trustee's Sale of Property and at the Place of Substitute Trustee's Sale of Property, I, as Substitute Trustee, or any other substitute trustee Lender may appoint, will sell the Property by public sale to the highest bidder for cash or acceptable certified funds, according to the Deed of Trust and applicable law. The sale and conveyance of the Property will be subject to all matters of record applicable to the Property that are superior to the Deed of Trust and to any permitted exceptions to title described in the Deed of Trust. Substitute Trustee has not made and will not make any covenants, representations, or warranties about the Property other than providing the successful bidder at the sale with a deed to the Property containing any warranties of title required by the

Deed of Trust. The Property will be sold AS IS, WHERE IS, AND WITH ALL FAULTS.

ASSERT AND PROTECT YOUR RIGHTS AS A MEMBER OF THE ARMED FORCES OF THE UNITED STATES. IF YOU OR YOUR SPOUSE IS SERVING ON ACTIVE MILITARY DUTY, INCLUDING ACTIVE MILITARY DUTY AS A MEMBER OF THE TEXAS NATIONAL GUARD OR THE NATIONAL GUARD OF ANOTHER STATE OR AS A MEMBER OF A RESERVE COMPONENT OF THE ARMED FORCES OF THE UNITED STATES, PLEASE SEND WRITTEN NOTICE OF THE ACTIVE-DUTY MILITARY SERVICE TO PETITIONER OR PETITIONER'S ATTORNEY IMMEDIATELY.

APPOINTMENT OF SUBSTITUTE TRUSTEE

DEED OF TRUST: Deed of Trust described as follows:

Date: June 15, 2001
Grantor: Juan M. Montanez Jr. and Catalina Montanez
Trustee: Harold W. Hahn and/or Bill Hagan
Beneficiary: BANK OF AMERICA, N.A. successor to original lender
Recorded: INSTRUMENT NO. 20010044131 WHICH WAS RECORDED IN
THE REAL PROPERTY RECORDS OF EL PASO COUNTY,
TEXAS.

PROPERTY: The property described as follows:

THE PROPERTY LOCATED IN EL PASO COUNTY, TEXAS, INCLUDING PERSONAL PROPERTY, IF ANY, AS DESCRIBED IN THE DEED OF TRUST AND IN EXHIBIT A, ATTACHED HERETO AND INCORPORATED HEREIN FOR ALL PURPOSES, together with all buildings, structures, fixtures and improvements thereon and any and all appurtenances and rights thereto, ***SAVE AND EXCEPT ANY AND ALL LOTS OR PORTIONS THEREOF THAT HAVE BEEN RELEASED OF RECORD BY THE HOLDER OF THE DEED OF TRUST.***

SUBSTITUTE TRUSTEE: Beverly Mitrisin, Russel A. Malphurs, David Garvin, Bruce Miller, Israel Curtis, Matthew Hansen, Faith Flores, Wesley Fowler-Williams, Gerardo Cabrera, Aleena Litton, Vina Nguyen, Dalene VanDermyden, Ramiro Cuevas, Joshua Sanders, Cary Corenblum, Daniel Hart, Auction.com LLC

Substitute Trustee's Mailing Address:

c/o SettlePou
3333 Lee Parkway, 8th Floor
Dallas, Texas 75219

Each Substitute Trustee is appointed **effective as of MAY 14, 2026**, pursuant to Texas Property Code § 51.0075 to succeed to all title, powers, and duties of the original or successor trustees under the Deed of Trust.

Appointment of Substitute Trustees:

By: Lillian Riley

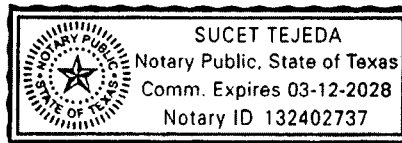
Name: Lillian A. Riley, Attorney for NewRez
LLC d/b/a Shellpoint Mortgage Servicing and
BANK OF AMERICA, N.A.

THE STATE OF TEXAS §
 §
COUNTY OF DALLAS §

BEFORE ME, the undersigned authority, on this day appeared Lillian A. Riley, and after being by me duly sworn, stated that they executed the foregoing instrument for the purposes and consideration therein expressed.

GIVEN UNDER MY HAND AND SEAL OF OFFICE on May 14th, 2026.

SA T2
Notary Public, State of Texas



Notice of Sale executed by:

David A. Garvin

Name: David Garvin

Substitute Trustee

EXHIBIT A

LOT 28, BLOCK 10, SIERRA HILLS UNIT THREE, AN ADDITION TO THE CITY OF EL PASO,
EL PASO COUNTY, TEXAS, ACCORDING TO THE PLAT THEREOF, RECORDED IN VOLUME
71, PAGES 67, PLAT RECORDS OF EL PASO COUNTY, TEXAS.